GERTRUDE DAMBUDZO MAGURANYANGA
and
REMEGIOUS MAGURANYANGA
and
ROBERT MUSARURWA MAGURANYANGA
versus
BONGANI MACHIRORI (In her capacity as the executor of the estate late Robert Maguranyanga DR 1473/23)
and
EBRAHIM STORES (PVT) LIMITED
and
MAMBO MAGURANYANGA
and
RODWEL T. MAGURANYANGA
and
EPIPHANIA MAKANYARA MACHANDO
and
EPIPHANIA MAKANYARA MACHANDO (In her capacity as the executor of the estate late Paul Maguranyanga DR2853/23)
and
SHYLET MBONJE
and
THE MASTER OF THE HIGH COURT
and
REGISTRAR OF DEEDS N.O

HIGH COURT OF ZIMBABWE
CHITAPI J
HARARE; 2 June 2026

Opposed Court Application

V. Makuku,for the applicants
N. Madya, for the 1st respondent
G. Chifamba, for the 2nd respondent
T. James, for the 3rd, 5th, 6th and 7th respondents
B. Maruwa, for the 4th respondent

CHITAPI J: The parties are as cited above. The three applicants together with five others, a total of eight persons are beneficiaries of the estate Late Robert Maguranyanga (the estate)

whose ref DR 1463/23 is under the administration of the first respondent as executor. The full list of beneficiaries is

a) The applicants
b) Epiphania Makanyara Machando
c) Estate Late Paul Maguranyanga represented by Epiphania Makanyara Machando
d) Mambo Maguranyanga
e) Remigious Maguranyanga
f) Robert Musarurwa Maguranyanga
g) Rodwell T Maguranyanga
h) Shylet Mbonje (Maguranyanga)

The respondents who are third, fourth, fifth, sixth (estate late Paul Maguranyanga) and seventh respondents and the applicants despite being beneficiaries of the estate subject of this dispute are at loggerheads over the administration of the estate. The first, second, eighth and nineth respondents are interested parties in the dispute and its outcome. In particular, the eighth and nineth respondents are cited as a matter of law.

The subject of dispute is an immovable property called Stand 572 Tynwald Township 18 of Tynwald measuring 8094 square metres held under Deed of Transfer No 2462/83 in the name of the deceased Robert Kafurata Maguranyanga. The first respondent in her capacity as executor as aforesaid sold the property to the second respondent in terms of a written agreement executed on 22 May 2025 for the purchase price of US$ 450 000 in free funds.

The applicants considered the sale price of US$ 450 000 to be too low and prejudicial to them holding that they will not realise the full value of their inheritance. They averred that the fair market value of the property was US$ 872 250 based on a valuation report made on 24 January 2023 by the Institute of Appraisers as the instance of the first respondent in her capacity as executor of the estate. It is common cause that the beneficiaries of the estate consented to the sale of the property with the result that the eighth respondent acting in terms of section 120 of the Administration of Estates Act [*Chapter 6:01*] issued the requisite consent to the first respondent to dispose of the property by private sale.

The first respondent in the process of selling the property received an offer from the second respondent of US$ 450 000 as the purchase price of the property. The offer was made by the second respondent by email sent on 12 December 2024. The first applicant alleges that

acting through her legal practitioner *Mr Machingura*, she emailed the first respondent objecting to the offer. She made the point that the offer made was lower than the evaluation price by 35%. The email was sent on 13 December 2024.

The second applicant also rejected the offer of US$ 450 000. The second applicant filed a supporting affidavit. In the affidavit, just like the first applicant, he averred that he did not agree to the offer because it was 35% lower that the valuation figure of US$ 872 250. He noted the objection through his legal practitioner *Mr Nyakudanga* who conveyed second applicant's objection to the first respondent by email also sent on 13 December 2024.

I should record that the first respondent upon receiving the offer notified the beneficiaries and asked for their views. The email which she sent was worded as follows

> "Dear All
>
> We have received an offer of US$ 450 000 for the Tynwald Plot, which is reasonable considering the property's length of time on the market.
>
> Please let me know your views on the issue by mid-day tomorrow, Friday 13 December 2024"

The third applicant is not referred to in the founding affidavit. He however filed a supporting affidavit. He does not therein indicate that he responded to the first respondent's email. He however stated that he did not agree to the sale because it would result in a 35% loss to the estate if the valuation of US$ 872 250 is considered.

The applicants averred that the first respondent did not respond to the objections and proceeded with the sale without the applicants' consent. They averred that the first respondent did not also advise them of the attitude of the rest of the beneficiaries. The applicants averred as well that they were shocked to be presented with the sale agreement and that the first respondent had confirmed the offer yet they had objected to it and had not received a response to their objections.

In searching for the exact cause of action, the best that provides an insight thereon is the first applicant's own deposition in paragraphs 23-26 of the founding affidavit. I proceed to recite the paragraphs *ipsissima verba* as follows:

> "23. For no good/legal cause the 1st Respondent proceeded to sign the agreement of sale with the 2nd Respondent on the offer of US$450 000-00 which I objected to for the following reason that it was too low.
> 24. I submit that the agreement of sale be set aside for the following reasons;
> 24.1 The value signed for by the 1st Respondent with the 2nd Respondent is too low and is not the correct value of the property.
> 24.2 The value will prejudice the estate as it does not serve the best interests.

24.3 I did not authorise the 1st Respondent to sign the agreement basing on the offer which I objected.
24.4 I did not authorise the sale.
25. I objected to the offer and the 1st Respondent proceeded with the sale to the prejudice of the estate.
26. The proceeds of the sale have not been distributed. The 2nd Respondent is not prejudiced by a refund of the money she paid to the 1st Respondent."

The applicants averred that the first respondent has since prepared a first and final distribution account of the estate based on the sale price of the property of US$ 450 000 which they object to. They aver that the estate plan should not be confirmed as it is based upon "an undervalued price and a defective sale"

In their draft order the applicants pray for the following order to be granted by the court in their favour

"IT IS ORDERED THAT:
1. The Application be and is hereby granted.
2. The Agreement of Sale signed by the 1st and 2nd Respondents with respect to Stand 572 Tynwald Township 18 of Subdivision 0 of Tynwald South of Fontainbleau held under Deed of Transfer No. 2463/83 be and is hereby set aside.
3. The Distribution Plan signed by the 1st Respondent on the 2nd of May 2025 filed under DR 1473/23 at the 8th Respondent's records be and is hereby set aside.
4. There shall be no order as to costs in the event that the Application is not opposed"

The first respondent opposed the application. She outlined the paper trail of the facts and circumstances of the devolvement of the estate and sale of the property in turn. Notably she stated that the first applicant first indicated a wish to buy out the other beneficiaries to maintain "her father's legacy" and not dispose of the property. She advised the first respondent to have the property valued. This communication was made in writing under the hand of a letter by her legal practitioners dated 15 December 2022 and received by the first respondent on 16 December 2022.

The first respondent deposed that the property was valued at US$ 872 250 she communicated with the beneficiaries thereafter she held a meeting with them on 1 March 2023. Significantly, the first applicant disputed the valuation and argued that it was based upon a zoning of the property as commercial yet it was residential. The first applicant averred that the value of US$ 872 250 was speculative and too high. The second applicant had a valuation done and a report prepared dated 27 April 2023 by Seef Property Valuers. The market value of the property was given as US$ 270 000 and the forced market value, US$

175 000. The first applicant also had the property valued by a registered estate agent, one Reginald Dziwa who prepared a valuation report. In his valuation certificate dated 11 December 2022, he averred a market value of US$ 150 000 and a forced sale value of US$ 120 000. The first respondent averred that faced with the three valuations with contrasting values, she engaged the eighth respondent for directions on the way forward.

The first respondent attached the advice from the eighth respondent which was to the effect that the property should be put on the open market and the beneficiaries right of first refusal should be maintained. This meant that the beneficiaries could offer a purchase price above the open market offer or match it. The first respondent also extended to the beneficiaries, the right to also market the property for sale to best advantage. The first respondent instructed at least three estate agents namely Rawson, Pam Golding and Oasis to market the property. The property was marketed openly as shown on advertisements which the first respondent attached.

In the process, an intervening court application was filed under case no HC 8063/23 by the same applicants herein seeking to place a caveat on the property pending finalization of the estate Dudzai Maguranyanga which was said to have an interest in the property. DEME J on 18 July 2024 issued an order by consent. In terms of the order, it was ordered that the property be sold to best advantage of all beneficiaries. The first respondent was ordered, in the event of a sale being concluded to hold in trust 35% of the purchase price pending finalisation of the proposed claim by the estate Dudzai Maguranyanga still to be formalised. The order gave a timeline of thirty days to the applicants to commence prosecution of their claim failing which the claim would be considered abandoned. In such event, the reserved sale proceeds would be shared by the beneficiaries equally.

The first respondent clarified that there was no agreed selling price and that the contrasting values of the property which were presented to her was the reason that she sought directions from the eighth respondent who then directed that the property be placed on the open market. The US$ 450 000 was the highest offer which the open market offered. She denied that there was an agreement that the property be sold at US$872 250. The first respondent denied that she executed the sale agreement without notifying the beneficiaries who included the applicants. She attached email correspondences in that regard as well as acceptances by other beneficiaries. She also averred that she applied her mind to the matter

and took the view that the US$ 450 000 was the best price which the market could offer and that valuation reports present a guide with the open market being correct indicator of the sale price where open market sale criteria is used.

The first respondent averred that when the valuation of US$ 872 25 was done, she convened a meeting with the available beneficiaries and sent emails to those outside the country. A further meeting was held on 1 March 2023 which the first applicant did not attend. Five beneficiaries voted in favour of the sale of the property. Of significance was that the applicant on 14 March 2023 wrote an email to the first respondent in which she disputed the sale of US$ 872 250 on the basis that the valuation was premised upon the property having been considered a commercial property yet it was residential. The first applicant wrote that it was her intention together with siblings in her camp to purchase the property through a payoff of the siblings who favoured the sale of the property. She disputed the valuation and stated that she had a valuation dated 11 December 2022 which she promised to share in due course. She supported the idea of a revaluation. She disputed the valuation in her email as follows

> "…..the value thereof is too high and was based on a speculation of the property being commercial instead of its correct position which is residential"

The first respondent also attached a copy of her letter wherein she sought directions from the eighth respondent in the light of the valuation reports which gave values which were far apart. Significantly, the door was always open for the applicants to buy out the other beneficiaries or introduce a buyer who could offer more for the property. The court notes that in their application, the applicants did not allude to any better offers being available for consideration. Equally they did not make an offer themselves to pay more that the US$ 450 000 for the property. The applicants' main contention is that a sale at the figure of US$ 450 000 is too low and prejudices the estate and them in the process.

The applicants in pleading a value of US$872 250 as the market price simply flip flop positions. They firstly denied that valuation figure. They now seek to return to it in an effort to have the sale for US$450 000 set aside. The first applicant and so it is with others who adopted her affidavit are acting *mala fide*. They seek to mislead the court and are untruthful on oath. What the applicant deposed to in that regard was inconsistent with the position which she then adopted.

In paragraph 16 of the founding affidavit, the first applicant states

> "16. Consequent upon the issuance of the consent to sale by the 8th Respondent, the 1st Respondent secured an agreed valuator to do a valuation report so as to determine the correct value of the property before it was advertised on the market for sale.
> As agreed, the valuation report was prepared by the Institute of Appraises of No. 57 Clyde Road, Eastlea, Harare and all the Respondents 3-9 and the 1s Respondent including Applicants did not object to the value which was signed up by the valuators Institute of Appraises for the sum of US$872 250-00. Copy of the valuation report is annexed hereto as V1"

The first applicant then averred that the first respondent procured the sale under challenge for US$ 450 000 to the prejudice of the estate as the value was 35% below the US$ 872 250. The first applicant deliberately concealed the fact that she objected to the value of US$ 872 250 which was to her a commercially assessed value yet the property was residential. She did not make any effort to explain why she now considered the value which she originally objected to as the fair market value of the property. The first applicant deliberately omitted to disclose the other valuations which were done after she objected to the value of US$ 872 250. The applicant by failing to disclose the other valuations made and the reasons for their making fails to place herself in the confidence of the court and is untruthful. She clearly is not motivated by the pursuit of justice but for selfish ends to ensure that the property does not get sold.

In a *dicta* in the case of *Elvis Basira* v *Vimbai Manemo* HB 46/18 which was an urgent application but applies with equal force in this application founded by affidavit, MATHONSI J (as he then was) had this to say

> "An application which is not only based on falsehood but in which the applicant withholds vital information in order to mislead the court in the hope of obtaining an undeserved relief cannot succeed. In such a situation, in dismissing the application, the court will also make an adverse or punitive order for costs as a seal of its disapproval of *mala fides* or dishonesty on the part of the litigant. See *Batore Import & Export (Pvt) Ltd* v *Bayswater (Pvt) Ltd & Another* HH 614-14 (unreported). This approach flows from the fact that the utmost good faith must be observed by all litigants who approach this court seeking the indulgence of being heard on an urgent basis or *ex parte*. In such an application, an applicant is required to disclose all facts relevant to the matter tending to have a bearing on the outcome. This court always discourages urgent applications whether *ex parte* or not which are characterized by material non-disclosures. See *Graspeak Investments (Pvt) Ltd* v *Delta Corporation (Pvt) Ltd & Another* 2001 (2) ZLR 551 (H) at 555C-D; *Moyo & Another* v *Hassbro Properties (Pvt) Ltd & Another* 2010 (2) ZLR 194 (H) at 197 A-B."

What emerges from the above dicta is simply that the court frowns upon litigants who mislead the court in an affidavit presented by them to the court especially so where the deponent seeks to get undeserved relief.

In the same case, the learned MATHONSI J made reference to material non-disclosures in affidavits and their effect on the proceedings in which the affidavits are used as follows

> "…..There are material non-disclosures which the court frowns upon because they are designed to mislead the court into deciding the matter on incorrect information. The application should be dismissed on that basis alone given that an application stands or falls on its founding affidavit. See *Muchini* v *Adams* 2013 (1) ZLR 67 (S); *Hiltunen* v *Hiltunen* 2008 (2) ZLR 296 (H) at 301 B; *Mangwiza* v *Ziumbe NO & Another* 2000 (2) ZLR 489 (S) at 492 D-F."

The applicants in the answering affidavit did not explain why they did not disclose that there were other valuation reports compiled and the values which were fixed in the reports. The true paper trail was then concealed by the applicants. They presented a false narrative in the founding affidavit to hoodwink the court to hold that there was one valuation of US$ 872 250 and that despite such valuation the property was sold for US$ 450 000 which is too low. The answering affidavit cannot cure the nondisclosure. The applicants are mistaken in adopting the attitude that their consent is a prerequisite to the sale. Once the first respondent was authorized to sell the property by private treaty by the eighth respondent in an open sale and the property is sold openly and transparently, then the sale is a lawful one and the court must uphold it. The beneficiaries may never reach a consensus as in this case on the fairness of the price realized. What is critical to consider is that the beneficiaries were agreed that the property be sold instead of it being shared amongst them could be done by apportioning equal shares in the property to each of them. The beneficiaries do not direct the sale processes.

The application is based on material nondisclosure of background facts. The applicants simplified the case as one where the first respondent whilst holding a valuation report of the property in the sum of US$ 872 250 capriciously sold the property for US$ 450 000. This was false because there were developments of disagreement on the values and new evaluation reports were procured. The applicants concealed these material facts. The court frowns upon the conduct of the applicants. I find no reason to depart from the courts approach in instances of non-disclosure of facts in affidavits without cause in order to get a benefit of an order sought. The approach in the case of the applicant being the culprit is to dismiss the application. Such order is fitting in this case.

Costs are invariably awarded on the higher scale against the errant party as a mark of the courts disapproval of litigants who conceal the truth to hoodwink the court to rule in their

favour. This is what applicants did in this case. The costs remain in the discretion of the court. In the exercise of such discretion and having found the conduct of the applicants to be despicable, a punitive costs award presents itself as the most appropriate award. I determine the matter as follows

IT IS ORDERED THAT

1. The application be and is hereby dismissed.
2. The applicants jointly and severally the one paying the other to be absolved to pay the costs of the application on the legal practitioner and client scale.

CHITAPI J:……..

Makuku Law Firm – applicants
Wintertons Legal Practitioners- 1st respondent
Gallop & Blank – 2nd respondent's legal practitioners
Sithole & James Legal Counsel - 3rd, 5th, 6th and 7th respondents
Zuze Law Chambers- 4th respondent